

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

-----X
:
ANTHONY S. PIGNATARO,

:
:
Petitioner, Pro-se
:
:
:

HABEAS CORPUS
PETITION

- against -
:
:
:
:
:

MEMORANDUM

07, CV 0431

THOMAS POOLE, Superintendent,
Five Points Correctional Facility, :

Respondent.
:
:
-----X

CIVIL DOCKET NUMBER:

STATE OF NEW YORK)
) ss.:
COUNTY OF SENECA)

I, Anthony S. Pignataro, being duly sworn, deposes and says:

1. I am the petitioner in the above-entitled action, proceeding Pro-se.

2. I bring this petition for the issuance of a Writ of Habeas Corpus to vacate the Judgment of Conviction, rendered in the Erie County Supreme Court on February 9, 2001.

3. The basis of this petition is that I was denied my State and Federal Constitutional rights to the effective assistance of Appellate Counsel, and that there were other procedural and substantive issues relative to my appeal that affected my State and Federal Constitutional rights to Due Process and Equal Protection that are fully discussed and developed below.

FILED
2007 JUN 29 PM 3:08
U.S. DISTRICT COURT
W.D.N.Y. - BUFFALO

4. No other application/petition for the relief requested herein has been made.

*** BACKGROUND AND ARGUMENT: COUNTS ONE AND TWO ***

5. On March 7, 2006, the petitioner moved the Erie County Supreme Court pursuant to CPL section 440.10 for an order vacating his judgment of conviction. See Exhibit One. That Court denied the Motion stating that same needed to be presented to the Appellate Division Court as a Coram Nobis Motion. The Coram Nobis motion was filed on January 12, 2007. This Motion was denied, as well. See Petition.

6. In May, 2000, the petitioner was indicted upon the charges of Attempted Murder 2nd Degree, Assault 1st Degree, and three counts of Criminal Possession of a Controlled Substance 7th Degree, in Erie County Supreme Court, indictment number 99-1663-001. See Exhibit One, "A".

7. On November 3, 2000, petitioner entered a guilty plea to Attempted Assault 1st Degree pursuant to an agreement that he would receive a sentence of between five and 15 years imprisonment. See Exhibit One, "B". On February 9, 2001, petitioner was sentenced to the maximum punishment, 15 years imprisonment (Honorable Mario J. Rossetti, Acting Supreme Court Justice). See Exhibit One, "C". Five years Post-release supervision was also imposed, though this was not disclosed at the time of plea or at the time of sentence. The sentence in this conviction was consecutive to a prison term of one and a third to 4 years for a conviction of criminally negligent homicide. See Exhibit One, "D".

8. A Notice of Appeal from the conviction herein was filed on February 13, 2001. See Exhibit One, "E".

9. On April 2, 2002, while imprisoned, the petitioner retained Steven R. Kartagener, Esq. (hereafter, "attorney") to represent him on his direct appeal. As set forth below, despite being retained, the attorney failed to take any action to perfect the direct appeal, allowed the direct appeal to be dismissed, and failed to move to vacate the dismissal of the appeal and misled his client as to what the attorney had done. In doing so, the attorney effectively and unilaterally acted as a court of last resort.

10. On June 27, 2002, the prosecution moved to dismiss petitioner's direct appeal for failure to perfect the appeal. The Erie County District Attorney's Office served the motion to dismiss the appeal by mail upon the petitioner himself, as Mr. Kartagener had not actually appeared for petitioner in the Appellate Division. Petitioner received the prosecution's motion papers on July 18, 2002. See Exhibit One, "F".

11. Upon receipt of the prosecution's motion to dismiss, the petitioner immediately contacted his attorney, Steven R. Kartagener, and provided the attorney with a copy of the motion papers via express mail. See Exhibit One, "G".

12. On September 12, 2002, at a meeting at Five Points Correctional Facility between petitioner and the attorney, Mr. Kartagener informed the petitioner that the attorney had made contact with the clerk of the Appellate Division and that he had also prepared the proper paperwork to be submitted to the appellate court. To the best of this petitioner's knowledge, no such contact with or paperwork to

the Appellate Division took place, and the attorney falsely represented to his client that he had performed work that was not done, lulling the defendant into believing that his right to a direct appeal on this conviction was preserved. Additionally, in a telephone conversation on July 23, 2002, attorney Kartagener told the petitioner that he had spoken with the Erie County District Attorney's Office and a clerk of the Appellate Division, Joan Varney, that the attorney would be submitting a response to the court on July 29, 2002, and that the notices of appeal (in this indictment and indictment 97-1980-0001) would not be dismissed.

13. In a meeting with the petitioner at Five Points Correctional Facility on September 12, 2002, prior to the Appellate Division order dismissing the direct appeal, Mr. Kartagener promised to provide the petitioner with the paperwork sent to the Appellate Division. The attorney failed to do so.

14. On September 16, 2002, the motion to dismiss the appeal was granted by the Appellate Division Court, the order stating: "there being no opposition thereto." See Exhibit One, "H".

15. Immediately upon receipt of the order, petitioner on September 18, 2002, wrote to the attorney stating in part:

"This was not supposed to happen. You promised me that you had spoken to the D.A. and written to the Fourth Department and that the motion to dismiss my appeal was not going to happen. I took you at your word. You promised me at our meeting last week, that you would send me a copy of you [sic] correspondence with the Fourth Department Appellate Division," See Exhibit One, "I".

Petitioner's letter also requested the attorney to send the correspondence that the attorney had allegedly sent to the Appellate Division.

16. After the dismissal of the direct appeal of the conviction in this indictment, petitioner both by phone and letter repeatedly sought to have his attorney move to vacate the dismissal order. Again, Mr. Kartagener took no action. See Exhibit One, "J".

17. Throughout this time period, the petitioner himself acted tenaciously in attempting to assert his right to appeal through his attorney, Steven R. Kartagener. While imprisoned, petitioner repeatedly attempted to telephone his attorney's office but was rarely able to speak directly to the attorney.

18. On October 4, 2002, one occasion when the attorney and petitioner did speak by telephone, the attorney stated that dismissal of the appeal "doesn't matter." In a telephone conversation on July 24, 2003, the attorney told the petitioner that the Fourth Department "won't entertain it [the motion to vacate the dismissal order]."

19. On September 12, 2003, in speaking by telephone with the petitioner, with reference to moving to vacate the dismissal of the direct appeal, the attorney stated, "There are no issues to be raised."

20. On November 7, 2002, by express mail, the petitioner sent to the attorney another postage-paid express mail envelope in order to obtain the "paperwork" that the attorney said that he had sent to the Appellate Division. See Exhibit One, "L".

21. Because of the attorney's failure or refusal to accept the petitioner's phone calls or respond to the petitioner's multiple correspondence, petitioner sought the assistance of others to make contact with Mr. Kartagener. See sworn affidavits from Raymond P. Trevisan, Esq., Ross M. Cellino, Esq., Lena Pignataro,

Santo F. Pignataro and Carl Bueme, Sr., Exhibit One, "M". Additionally, petitioner sought the assistance of another attorney in New York City, Murray Richman, Esq., See Exhibit One "AA". See also the affidavit of Attorney Michael A. Jones, wherein, Mr. Jones states:

"In October, 2004, I was retained by Defendant to perfect the appeal of the denial of the CPL 440.10 motion. The motion was initially made by Attorney Steven R. Kartagener in the State Supreme Court, Erie County. The motion was denied. Attorney Kartagener obtained leave to appeal from the Appellate Division, Fourth Department, on August 12, 2003. Upon information and belief, the defendant received no communication from Attorney Kartagener in the fourteen (14) months between the granting of leave and my involvement.

After being retained by Mr. Pignataro in October, 2004, I attempted to contact Attorney Kartagener to execute a Substitution of Attorney form, obtain the complete file, and to discuss the matter.

Despite my correspondence and numerous telephone calls to Attorney Kartagener's office, he failed to respond and, in fact, never signed the Substitution of Attorney form. To this day, I have not received any letters or telephone calls from Attorney Kartagener.

I am presently representing Mr. Pignataro in a civil lawsuit against Attorney Kartagener. In Answer to the Complaint, Attorney Kartagener alleged the dismissal of the direct appeal as 'essentially irrelevant.'

See Exhibit One, "M. Jones' Affidavit".

22. The failure to preserve this petitioner's right to a direct appeal was due solely to the inaction of Steven R. Kartagener. See Exhibit One, "N".

23. After the appeal was dismissed, Mr. Kartagener provided a written rationale for his action or inaction on the direct appeal. In the motion for leave to appeal the denial of the CPL 440.10 motion dated May 23, 2003 (Exhibit one, "O" ¶¶19,20), Steven R. Kartagener stated that he would have perfected the direct appeal had the conviction occurred in the Third Department, but based upon

his review of Fourth Department authorities:

"Thereafter, I contacted Ms. Varney of the court's [Fourth Department's] staff and I explained to her the situation concerning the motion to dismiss. I asked whether I would be able to obtain an extension of time within which to assess defendant's legal options and put in a response to the motion that satisfied this Court's requirements as set forth in 22 N.Y.C.R.R. 1000.13(e)(f). With the consent of the People, I was able to obtain a delay in the submission of the motion to dismiss to the Court, during which time I was able to review defendant's legal options and decide whether we would seek to perfect defendant's appeal despite his having waived his right to appeal as part of the plea and sentence proceedings."

"It soon became apparent to me that if defendant's conviction had been obtained in the Third Department, I would have obviously chosen to proceed by perfecting a direct appeal from the judgment of conviction. However, following my review of all the aforementioned legal authorities that were available to me, I concluded that it would be **FUTILE** to attempt to proceed in this Fourth Department by way of a direct appeal, since this court had already firmly announced that it would not entertain the post-release supervision issue in the absence of a motion 'to vacate the judgment of conviction.'...Direct appeal was absolutely foreclosed as a possible vehicle for obtaining relief. Accordingly, I decided to follow this Court's expressly stated guidance on this issue and determined that we would proceed by way of a motion to vacate judgment pursuant to CPL §440.10...."

See Exhibit One, "O", ¶¶19,20 (emphasis added).

NOTE THE EXCLUSIVE USE OF THE 1ST PERSON SINGULAR TENSE (ABOVE)!!!!

Mr. Kartagener, however, never discussed the above with his client, nor did he seek his client's consent. In fact, he misinformed (deceived) his client by telling the client that he had submitted the papers in opposition to the People's motion to dismiss the direct appeal.

24. In addition to calling the direct appeal "**FUTILE**" (above), Mr. Kartagener, in a memorandum of law submitted as part of the CPL 440.10 motion in State Suprmem Court, termed the dismissal of the direct appeal to be "meaningless." See Exhibit One, "P", p.11, fn.1. Mr. Kartagener has also stated that the dismissal of the appeal was

"essentially irrelevant." See Exhibit One, "M. Jones' affidavit", ¶5.

25. Attorney Kartagener recognized that there was "already developing a serious schism between [the Fourth Department] and the Third Department with respect to" the issue of postrelease supervision. See Exhibit One, "O", pp8-9. ¶15. Despite recognizing that conflict on this issue among the Appellate Divisions, that the law was unsettled in this area, and that the Court of Appeals would likely review the issue, attorney Kartagener made the unilateral decision to not pursue the direct appeal because he said he believed it would be "futile." The attorney's decision was not only unilateral, it was never communicated to the petitioner, who found out about the attorney's decision only after the Appellate Division granted the prosecution's motion to dismiss the appeal, See Exhibit One, "H" & "I". After the dismissal of the direct appeal, the attorney continued to affirmatively misrepresent his actions to the petitioner.

26. Throughout his representation, Mr. Kartagener studiously avoided placing communications with his client in writing, including failing to draft a written retainer agreement as well as failing to explain to his client what he had done and the reasons therefor. (it should be noted that with a fee of \$3,000 or more, a written retainer agreement or letter of engagement is required under 22 NYCRR §1215.1(a)).

27. In his CPL 460.15 affirmation dated May 23, 2003, Exhibit One, "O", Mr. Kartagener explained, in an exceedingly self-serving manner, that he alone had resolved to not oppose dismissal of the direct appeal. In doing so, the attorney continued undercutting petitioner's legal position rather than protecting it.

28. By failing to either oppose the motion to dismiss the appeal, or seeking to vacate the appellate order of dismissal, I submit that the attorney's statements were aimed at protecting himself, not defending his client. Faced with the prosecution's argument under CPL 440.10(2)(c), Mr. Kartagener did not reply, and could not, because having allowed the direct appeal to be dismissed, he was now in a conflict of interest. In fact, the attorney did not provide to petitioner the District Attorney's response to the CPL 440.10 motion until after Justice Rossetti's decision and order was entered. The attorney did not reveal this conflict to me or to Justice Rossetti. As noted, once leave to appeal the CPL 440.10 order to the Appellate Division was granted, Mr. Kartagener failed to perfect even this appeal, despite the attorney's letter to me stating "get ready for Round 2." See Exhibit One, "Z".

29. In 2005, the New York Court of Appeals decided People v. Catu, 4 NY3d 242, holding that postrelease supervision is a direct consequence of a criminal conviction, and that the failure to inform a defendant who pleads guilty of that consequence renders that plea unintelligent and involuntary.

30. The decision not to pursue the direct appeal or the failure to contest the motion to dismiss the appeal, or the decision not to reargue the 440.10 motion so as to explain his unilateral decision, was solely that of Steven R. Kartagener, and was expressly against petitioner's repeatedly and vociferously stated position, which I repeatedly communicated to my attorney. In fact, I was unaware of this decision by my attorney, or of the failure of my attorney to contest the motion to dismiss, until I received the

Appellate Division order of dismissal. The order of dismissal was mailed directly to myself, from the Appellate Division. Upon information and belief, Attorney Kartagener filed no papers in opposition to the motion to dismiss, despite his repeated assurances to the contrary to this petitioner.

31. On November 7, 2002, for example, in order to obtain from my attorney the papers that Mr. Kartagener said he had prepared to oppose the dismissal of the direct appeal. I express-mailed a postage paid express-mail (second) envelope for the attorney to mail back to me those papers. The attorney sent nothing to this petitioner. See Exhibit One, "L".

CPL 440.10 MOTION TO VACATE CONVICTION

32. In February 2003, attorney Kartagener moved to vacate the conviction in this indictment pursuant to CPL 440.10(1)(b),(h). See Exhibit One, "K". This motion was based on the failure to inform the defendant of postrelease supervision at the time of guilty plea and sentence.

33. The prosecution's opposition to the CPL 440.10 motion was based upon the defendant's supposed "unjustifiable failure" to pursue a direct appeal, CPL 440.10 (2)(c). The prosecution's brief on the 440.10 appeal conceded that the defendant was not informed of postrelease supervision:

"Here, there is no dispute that absent from the record is notice to defendant that he would be facing post-release supervision if he pleaded guilty." See Exhibit One, "Q", p.8.

34. This CPL 440.10 motion was denied without a hearing on April 16, 2003 (Honorable Mario J. Rossetti, Acting Supreme Court Justice). Exhibit One, "R".

35. When Mr. Kartagener discussed the denial of this CPL 440.10 motion in a telephone call on May 13, 2003, the attorney termed it "intellectually dishonest" and "cowardly." See Exhibit One, "U".

36. After denial of the CPL 440.10 motion in Supreme Court, Erie County, Mr. Kartagener in May 2003, applied for and was granted leave to appeal to the Appellate Division, Fourth Department, August 12, 2003. Exhibit One, "S". However, the attorney failed to perfect the appeal of the order denying the 440.10 motion, and failed to initiate contact with me for a 14 month period, leading to this petitioner, in October 2004, discharging Mr. Kartagener and retaining other counsel, Michael A. Jones, Jr., Esq..

37 In January 2005, Michael A, Jones, Jr., Esq., moved to vacate the order dismissing the direct appeal in this indictment. See Exhibit One, "T". In this motion to the Appellate Division, Mr. Jones provided to the court four certified letters demonstrating petitioner's requests that Mr. Kartagener move to vacate the dismissal of the appeal. See Exhibit One, "U".

38. The motion to vacate was not made within one year of the dismissal of the appeal, as required by 22 NYCRR §1000.13(g), which the opposing affidavit of the Erie County District Attorney's Office pointed out. See Exhibit One, "V". The motion to vacate the dismissal of the direct appeal was denied by the Appellate Division Court on March 10, 2005, See Exhibit One, "W".

39. Michael A. Jones, Jr., also represented me in perfecting the appeal to the Appellate Division of the order denying the CPL 440.10 motion, which Mr. Kartagener had allowed to languish for well over one year, again despite the attorney's assurances to this petitioner by telephone in October, November, and Decemebr 2003 that the CPL 440.10 appeal would be perfected. This order was affirmed by the Appellate Division on July 1, 2005, People v. Pignataro, 20 AD3d 892 (4th Dept. 2005). See Exhibit One, "X". Leave to appeal to the Court of Appeals was denied on October 24, 2005, 5 NY3d 855. See Exhibit One, "Y".

MOST RECENT CPL 440.10 MOTION

40. The basis for the denial of the CPL 440.10 motion by Justice Rossetti was the defendant's unjustifiable failure to take or perfect his appeal, CPL 440.10(2)(c). See Exhibit One, "R".

41. CPL 440.10 states:

2. Notwithstanding the provisions of subdivision one, the court must deny a motion to vacate a judgment when:
(c) Although sufficient facts appear on the record of the proceedings underlying the judgment to have permitted, upon appeal from such judgment, adequate review of the ground or issue raised upon the motion, no such appellate review or determination occurred owing to the defendant's unjustifiable failure to take or perfect an appeal during the prescribed period or to his unjustifiable failure to raise such ground or issue upon an appeal actually perfected by him;..."

42. As set forth herein and in the accompanying exhibits, there was no unjustifiable failure **BY THIS DEFENDANT** to take or perfect my appeal. Rather, the failure to perfect the appeal was due solely to the ineffective assistance of petitioenr's attorney, Steven R. Kartagener, who affirmatively misled me.

43. Mr. Kartagener stated that he failed to perfect the appeal because he believed that it would be "FUTILE" to raise the issue of postrelease supervision on a direct appeal. See Exhibit One, "O", ¶20. The attorney stated the dismissal of the direct appeal was "meaningless," Exhibit One, "P". p.11, fn.1, and that the dismissal of the direct appeal was "essentially irrelevant," See affidavit of Michael A. Jones, Jr., ¶5, in Exhibit One. All of these claims of "futility" occurred after he had allowed the direct appeal to be dismissed.

44. In fact, the Court of Appeals has ruled that postrelease supervision is a direct consequence that a defendant who pleads guilty **must** be informed of. People v. Catu, 4 NY3d 242 (2005).

45. There was no "unjustifiable failure" by this petitioner at all. The failure to perfect and preserve the direct appeal was that of the attorney Steven R. Kartagener, who had also argued the CPL 440.10 motion.

46. Mr. Kartagener went beyond inaction; he affirmatively misled me. It is solely because of Mr. Kartagener's inaction on the direct appeal --over my repeated protests-- that the conviction in this indictment was not appealed and reversed. Once the appeal was dismissed in September 2002, Mr. Kartagener was in the position of a conflict of interest.

47. Professor Peter Preiser has addressed this very issue of the "unjustifiable failure" language in CPL 440.10(2)(c):

"In connection with paragraph (c) of subdivision two, note the escape hatch regarding 'unjustifiable failure.' This implies that failure to perfect an appeal, or to have raised a point on appeal where the nisi prius record

in denying this CPL 440.10 motion. Mr. Kartagener filed niether a reply to the prosecution's papers nor did he move to reargue so as to point out that the "unjustifiable failure" was his own.

52. Once the direct appeal that the attorney was retained to perfect was dismissed due to the attorney's inaction, Mr. Kartagener had a conflict of interest with me. Rather than the attorney disclosing that he had caused the "unjustifiable failure" to perfect the appeal, he did not reply to the prosecution's papers in opposition to his 440.10 motion, thereby permitting the conclusion that the defendant (I), rather than the attorney, was responsible for the "unjustifiable failure" to pursue the direct appeal. Notably, Mr. Kartagener could have moved to reargue, so as to explain that it was his unjustifiable failure. Not only did he not move to reargue, he never informed his client (me) of this option.

53. The attorney thereafter added further self-serving comments in his CPL 460.15 affirmation to the Appellate Division. See Exhibit One, "O". Significantly, nowhere in the CPL 460.15 affirmation did Mr. Kartagener respond to the District Attorney's and State Supreme Court's reference to People v. Cooks, (supra).

54. Mr. Kartagener went beyond inaction; he affirmatively misled his client regarding the direct appeal, both as to the effect of dismissal and as to what action the attorney had taken. Thereafter, the attorney failed to inform State Supreme Court and the Appellate Division of his responsibility in allowing the direct appeal to be dismissed.

55. As to the 'second' exception to the "unjustifiable failure" language in CPL 440.10(2)(c) mentioned by Professor Preiser (i.e., "where an appeal seemed futile due to the state of the law at the time, but subsequent retroactively effective changes would be applicable...."), the direct appeal at the time appeared to Mr. Kartagener to be "futile." See Exhibit One, "O" ¶¶19,20, (see also ¶23 of this Memorandum, above). Circumstances notwithstanding, subsequent Court of Appeals case law --People v. Catu-- was in fact applicable.

56. It is solely because of Mr. Kartagener's inaction on the direct appeal to the Appellate Division --over my repeated protests-- --and misinformation to this client (me)-- that this conviction was not heard on direct appeal and reversed.

57. In my letter to the attorney, I stated:

"Would not any prudent attorney, **having been specifically retained as an appeal attorney**, have acted as zealously as possible to protect any/all the client's rights/options at redress by, at minimum, submitting the proper paper-work/motion to have preserved client's right(s) to appeal, i.e. opposing People's motion to dismiss?????????"
See Exhibit One, "U", May 31, 2003 (emphasis added).

58. Petitioner paid Mr. Kartagener \$37,500.00 as retainers. As set forth below, despite being retained, this attorney failed to take any action to perfect the direct appeal. The work he performed consisted of filing a CPL 440.10 motion (on which he did not appear in Erie County) and thereafter filing for leave to appeal pursuant to CPL 460.15; he certainly was not paid \$37,500.00 for only those services. He failed to perfect the CPL 440.10 appeal and did nothing on the direct appeal, lying to me that he had opposed the dismissal motion, and allowing the direct appeal to be dismissed.

THE OPPOSITION TO THE MOST RECENT CPL 440.10 MOTION

63. In the prosecution's opposition to the most recent CPL 440.10 motion, they argued (inter alia) the procedural/jurisdictional issue espoused in People v. Bachert, 69 NY2d 593 (1987). Without reaching the merits, the lower Court adopted the People's Bachert argument. See Exhibit Two.

64. The People's opposition (Exhibit Two) goes on to address the merits of Petitioner's position, The chief flaw with the People's opposition is that they cannot escape the undeniable fact that this petitioner should have never been placed in the position of having to tell a private attorney to vacate/re-instate the dismissed direct appeal....i.e. had petitioner not been deceived and lied to by Mr. Kartagener.

65. The issue on this recent CPL 440.10 motion involved the pattern of misleading information by the former attorney, Steven R. Kartagener, to his client.

66. In connection with the direct appeal that was dismissed, the prosecution's opposing affidavit, Exhibit Two, ¶9, states, "defendant did not oppose the motion and the appeal was dismissed." In fact, the defendant (I) was misinformed -lied to- by Mr. Kartagener that the opposition to the dismissal had been filed. I clearly instructed my former attorney to oppose the dismissal.

67. This proceeding sets forth a question of facts as to what petitioner was told by his former attorney, whether that information was accurate, and what that attorney did or did not do. This petitioner is not a lawyer and, as such, relied upon the expertise of my attorney

subject to the basic requirement that the attorney be forthright with him.

68. The prosecution's opposing affidavit, Exhibit Two, ¶5, states that "[i]n effect, the second motion to vacate consists of an argument why the first motion was incorrectly decided." This assertion is much to facile. The original CPL 440 motion, Exhibit One, "K", was brought in February, 2003, by Mr. Kartagener, at a time when he was under a conflict of interest, having allowed the direct appeal to lapse the previous September. His argument in his CPL 460.15 motion, e.g. "I concluded that it would be futile to attempt to proceed in the Fourth Department by way of a direct appeal....Direct Appeal was absolutely foreclosed as a possible vehicle for obtaining relief," See Exhibit One, "O", ¶20, were necessitated by his failure to have preserved the direct appeal.

69. Another ground set forth in the prosecution's affidavit is that this was the second motion under CPL article 440. The first 440.10 motion was brought by the attorney whose conduct is in question, Steven R. Kartagener. It is because of his duplicity towards his client (me) that the most recent 440.10 motion was brought.

70. The prosecution asserts, Exhibit Two, ¶21, that defendant (I) "knew of the dismissal of the appeal and yet continued to retain counsel," referencing defense Exhibit One, "I", "L" & "U". Implicit in this assertion is that a defendant who is incarcerated in a State Correctional Facility has the freedom, finances and where-withal to retain new counsel. This is/was not the situation. The Exhibits herein and accompanying the most recent CPL 440.10 motion

showed a clear pattern of frustration by this petitioner and of noncommunication by the attorney. Exhibit One, "I", which the prosecution cited as showing the issue of vacatur being a "matter of ongoing discussion," shows instead that no discussion was ongoing. In fact, from September, 2003, through November 2004, (14 months) there was absolutely no contact from Mr. Kartagener, despite desperate and determined efforts on my part to communicate!

71. Additionally, upon information and belief, as previously noted (§18 above) on October 4, 2002, after the direct appeal was dismissed, Mr. Kartagener told me that the dismissal of the appeal "doesn't matter." Additionally, in a telephone conversation on July 24, 2003, attorney Kartagener told me that the Fourth Department "won't entertain it [the motion to vacate]," (§18 above). In a telephone conversation on September 12, 2003, (§19 above), when I asked about moving to vacate the dismissal, Mr. Kartagener replied, "there are no issues to be raised."

72. The prosecution's affidavit in opposition to the recent CPL 440.10 motion, Exhibit Two, §21, asserts that "In none of the letters just cited does defendant tell his attorney that the attorney contravened defendant's expressed instructions." To the contrary, in Exhibit One, "I", which the prosecution references, I stated: "This was not supposed to happen. You promised me that you had spoken to the D.A. and written to the Fourth Department and that the motion to dismiss my appeal was not going to happen." How much clearer can contravention of expressed instruction be????

73. The aforementioned quotation in Exhibit One, "I", refers

to Mr. Kartagener's representation that he had "spoken to the D.A.". Exhibit One, "O", ¶19, contains Mr. Kartagener's sworn statements that "with the consent of the People, I was able to obtain a delay...." The prosecution's answering papers, however, contain no statement (Exhibit Two) from anyone in the Erie County District Attorney's Office concerning any communication with Mr. Kartagener.

74. The prosecution's affidavit, Exhibit Two, ¶12, references a July 13, 2003 letter (see Exhibit One, "U") in which I requested Mr. Kartagener to speak with someone in the Appellate Division "prior to proceeding with a motion pursuant to 22 NYCRR §1000.13(g)" i.e. a motion to vacate the dismissal of the appeal.

75. The prosecution's assertion, Exhibit Two, ¶ 23, cites this petitioner's "use of the subjunctive" ("should we decide to proceed..") as indicating "that defenant himself had not decided whether he wanted the dismissal to be vacated." Same is clearly a self-serving dys-interpretation. Clearly, a defendant, however schooled in the law, needs the advise of a law-trained attorney on appeal, as the following cases note. Clearly, this petitioner was manipulated by the svengali of an attorney who was -at this point- in a conflict of interest.

76. "In bringing an appeal as of right from his conviction, a criminal defendant is attempting to demonstrate that the conviction, with its consequent drastic loss of liberty, is unlawful. To prosecute the appeal, a criminal appellant must face an adversary proceeding that, like a trial is governed by intricate rules that to a layperson would be hopelessly forbidding," Evitts v. Lacey,

469 US 387, 396 (1985); see also, Restrepo v Kelly, 178 F3d 634 (2d Cir 1999).

77. In another letter of Petitioner, quoted by the prosecutor, the petitioner stated that it "causes me to acquiesce to your greater profession experience and judgment." Mr. Kartagener's professional experience and judgment were shown to be extraordinarily incorrect by the March 2005 Court of Appeals decision in People v. Catu, (supra) an issue that counsel was so wrong about that he deemed it even unworthy of appealing. Mr. Kartagener was plainly aware of the difference in ruling between the Third and Fourth Departments on postrelease supervision (see Exhibit One, "O", ¶20) yet, the thought apparently never occurred to him that the Court of Appeals would eventually resolve the issue. On June 5, 2007, People v. Louree, ___ NY3d ___, the Court of Appeals did resolve this issue:

"Until today, we had no occasion to decide whether a defendant may properly raise a Catu objection by way of a CPL article 440 motion. As stated in the text, we decide that a defendant may not."

78. Mr. Kartagener deceived this petitioner and allowed the appeal to be dismissed. I should not have been put in the position of having to vacate the dismissal of the direct appeal in the first place. I retained Mr. Kartagener to handle the direct appeal.

79. The prosecutor (Exhibit Two ¶39) refers to Mr. Kartagener's "appellate representation" as "superb." Mr. Kartagener's fault was in failing to provide any appellate representation. The prosecutor continues: "As reflected in the documents he submitted, former counsel was consistent in his legal judgment from beginning to end." Mr. Kartagener was consistent only in his misleading of this petitioner and being flat-out wrong about the merits of the postrelease supervision issue, allowing the direct appeal to be dismissed without opposition, failing to timely move to vacate, and then misinforming me, in direct contravention of my wishes and without my consent.

80. Should there be any question as to Mr. Kartagener's malfeasance, one need simply refer to the sworn affidavits of three attorneys and three civilians exhibited as Exhibit One, "M" and Exhibit One, "M. Jones' Affidavit."

81. What is most disturbing is the fact that Mr. Kartagener was referred and hired as a stalwart in appellate practice. Mr. Kartagener was retained in April 2002. Just two months later the District Attorney moved to dismiss my direct appeal. We know that Mr. Kartagener spoke to the District Attorney about this dismissal motion (See Exhibit One. "O" ¶19). This is appeal practice 101. A first year -first week- law student would know that one should protect all of his/her client's options for redress. What did Mr. Kartagener and the District Attorney discuss when they spoke??? What came next is even more disturbing. Not only does Mr. Kartagener fail in his duty to protect his client's right to appeal, he lies to the client by telling me that the appeal would not be dismissed and deceives me by saying that he had "submitted the proper paperwork" to prevent the dismissal.

82. When one considers how many defendants across this State have obtained relief on this very same postrelease supervision issue with assigned counsel, thereby never having incurred the extraordinary expense associated with retained counsel, one cannot help but begin to wonder; **WHO IS COMPLICIT WITH WHOM?**

83. As such, the prosecutor's classic psychological symptoms of projection (i.e. complicity) is moot. This is so because the implication that I was somehow complicit with Mr. Kartagener's negligence in having failed to correct his error by moving to re-instate the

direct appeal should never have been. I should never have been in the position of having to try to convince Mr. Kartagener to do the right thing.

84. As the 'preponderance of the complicity evidence' mounts, consider the following. It is generally unheard of for a District Attorney to make the motion to dismiss one's direct appeal. After more than seven (7) years in State prison, I have yet to see or hear of this being done to any other inmate; at least, not after a short 16 months post-conviction. In speaking with a former District Attorney, he could not recall a single time that such a motion was made. With this information, I decided to make a request under the Freedom of Information Act, to try to determine how many times the Erie County District Attorney has made such a motion in the past 5 and one half years. Not only did the District Attorney deny me this information, he was stated that his office "does not generate lists of motions, nor cases when motions to dismiss are made." See Exhibit Five. One can only assume that mine was the only one. In weighing the 'complicity evidence,' what other conclusion could one draw? NOTE: Mr. Kartagener is also a former District Attorney.

85. All of the above circumstances notwithstanding, all of this should be moot, as well. The Supreme Court of Appeals has stated in People v. Catu, 4 NY3d 242, that the Constitutional error in my conviction rests with the Supreme Court. Should one not expect that the Supreme Court would have the Honor to accept responsibility for its error. In fact, the Supreme Court at sentencing and in the words of the Prosecutor, "harshly condemned" (Exhibit One, "Q", p.5) me for not accepting responsibility for an alleged error and helping

to correct it. Essentially and with all respect to your Court, this is all that I am asking for here. Our Constitution's guarantees of Due Process and Equal Protection demands no less.

86. Not merely Mr. Kartagener's in-action, but his failure to act despite my repeated protestations, his avoidance of responding and his affirmative misstatements to me, constitutes ineffective assistance of Counsel. Unites States Constitution, Amend VI, NYS Const. Article 1, §6.

87. In a Federal Habeas Corpus proceeding reviewing a state criminal conviction, the Second Circuit held that abandonment of an appeal is a per se violation of the right to effective assistance of counsel. Restrepo v. Kelly, 178 F3d 634 (2d Cir 1999). Quoting Evitts v. Lacey, 369 US 387, 396 (1985), the Second Circuit, in Restrepo stated:

"In bringing an appeal as of right from his conviction, a criminal defendant is attempting to demonstrate that the conviction, with its consequent drastic loss of liberty, is unlawful. To prosecute the appeal, a criminal appellant must face an adversary proceeding that -like a trial- is governed by intricate rules that to a layperson would be hopelessly forbidding. An unrepresented appellant -like an unrepresented defendant at trial- is unable to protect the vital interests at stake.

88. The state court appellate attorney's failure to follow his client's (my) instructions and false representations constitutes ineffective assistance of counsel. Restrepo v. Kelly, 178 F3d at 639.

89. In Baldayaque v. United States, 338 F.3d 145 (2d Cir 2002), the Second Circuit found "extraordinary circumstances" where the attorney failed to file post-conviction motion despite being specifically directed to and gave erroneous information to the

defendant's representative, violating a "basic duty" to his client by refusing to do what was required on a fundamental matter.

90. The New York State Court of Appeals has (TIMES THREE) held that reversal is mandated when failure to inform a defendant who pleads guilty of the mandatory component of postrelease supervision occurs. People v. Catu, 4 NY3d 242 (2005), People v. VanDuesen, 7 NY3d 744 and People v. Louree, ___ NY3d ___, (June 5, 2007). Due process and Equal protection entitle this petitioner to the relief requested. Such fundamental appellate attorney error/negligence [private and retained as Mr. Kartagener was] is imputed to the State, inasmuch as, Mr. Kartagener is an office of the State Supreme Court.

91. Federal Courts concur. See McCarthy v. United States, 394 US 459, 466 (1969) ("...[I]f a defendant's guilty plea is not equally voluntary and knowing, it has been obtained in violation of due process"); Mabry v. Johnson, 467 US 504, 509 (1984) ("Thus, only when it develops that the defendant was not fairly appraised of its consequences can his plea be challenged under the due process clause."). See also, United States v. Renaud, 999 F2d 622 (2d Cir 1993) and United States v. Andrades, 169 F3d 131 (2d Cir 1999); guilty plea must be vacated when defendant not informed of supervised release.

92. Petitioner has unquestionably met the requirement of cause and prejudice as embodied by the Supreme Court's standard in Strickland v. Washington, 466 US 688 (1984).

93. This complete argument was thoroughly presented to the Erie County Supreme Court (Acting Supreme Court Justice, Richard C. Kloch Sr.) via a second CPL 440.10 motion inasmuch as the facts

were disputed by the prosecution. Without first hand knowledge, the prosecution made unfounded allegations that petitioner agreed with Mr. Kartagener's malfeasance. As such, a hearing should have been held. Justice Kloch denied the motion on November 30, 2006, citing People v. Bachert, 69 NY2d 593, to find that the motion should have been brought as a Coram Nobis motion in the Appellate Division, Fourth Department.

94. A Coram Nobis motion was immediately presented to the Appellate Division on January 19, 2007. Cognizant of the disparity of facts, petitioner pleaded with the Appellate Division court (see reply affidavit) to invite attorney Kartagener -as an officer of the court- to provide an Amicus Curiae submission. Nevertheless, no such submission, Amicus Curiae or otherwise was ever received from Mr. Kartagener.

95. Circumstances notwithstanding, the Appellate Division denied the Coram Nobis motion on March 16, 2007.

96. The New York State, Court of Appeals, denied leave to appeal the Coram Nobis motion on June 14, 2007.

97. Plainly, on this issue of failure to inform the defendant/ petitioner of postrelease supervision, [grounds One and Two herein] the petitioner was denied his right to effective assistance of counsel, due process and equal protection under the first, fifth, sixth and fourteenth Amendments of the U.S. Constitution.

98. Wherefore, reversal is indicated in this issue [grounds One and Two] alone.

*** BACKGROUND AND ARGUMENT: COUNTS THREE & FOUR ***

99. The proceeding argument was presented to the Western District Federal Court of New York in the form of a criminal complaint mailed for filing to this Honorable Court of September 21, 2006. See Exhibit Six, pp.1-18.

100. Upon being admitted to practice law in the State of New York, an attorney is required to swear the Constitutional oath of office pursuant to Judiciary Law §466 and N.Y. CONST. Art. XIII, §I. Therefore, an attorney holds a position of public trust. Said public trust is even more significant when the attorney is an elected official.

101. Attorneys are, infact, "officers of the Court." A court should, consequently, be overly zealous when one of its officers is named in a complaint.

102. The petitioner's wife, Deborah M. Pignataro, was the alleged victim of a crime for which the petitioner was indicted in Erie County.

103. Deborah M. Pignataro had expressed to petitioner and others her desrie "not to press charges" and "not to testify." One of these 'others' is Mr. Robert O. Holley.

104. Mr. Holley, after confirming Deborah's position, then asked her why she subsequently joined the prosecution. Deborah affirmed that she was threatened by the prosecution with the loss of our children via the pending family court proceedings, should she not cooperate,

105. How much clearer can obstruction of justice and tampering with a witness be? See Exhibit Six, pp. 20-23.

106. The District Attorney's Office began their investigation in August of 1999. ADA Sedita let the Town of West Seneca investigators know -in no uncertain terms- that he (ADA Sedita) was in charge of the investigation and that he was to be informed of all information. Town of West Seneca Investigator, Dale White confirmed same.

107. When one lives in a sparsely populated suburb, it is easy to see when one is being surveilled, followed, tailed and photographed, especially if/when one is cognizant of same.

108. As a simple illustration, while attending my son's little loop football game, friends and fans inquired as to why a particular individual was photographing me and not the players???

109. Although I am unable to prove that there were any 'wire-taps,' it was quite coincidental and more than a little curious that at the inception of their investigation, a telephone company vehicle with three service men was parked in front of and on the telephone pole in front of my residence.

110. As the proceedings in my criminal action progressed, defense counsel requested discovery of all these materials. See Exhibit Six, pp. 25-27.

111. Interestingly, ADA Sedita disavowed all knowledge of any such records at a hearing in this matter on August 24, 2000. See Exhibit Six, pp. 28-30.

112. Petitioner (I) was highly miffed by this blatant perjury. However, at that time, there was nothing that I could do.

113. Sometime thereafter, the book by Ann Rule, 'Last Dance, Last Chance,' was published. This attempt at my biography provided the evidence to prove ADA Sedita's perjury. Pages 219, 233, and 260-261 of said book provided the proof necessary to vitiate the frustration referenced above. These pages (herein as Exhibit Six, pp 31,32,33&34) confirm the surveillance denied by ADA Sedita. Parenthetically, to deny awareness is to invoke the well settled 'known or should have known' doctrine.

114. In the People's response to defendant's Demand to Produce and the Demand for a Bill of Particulars, page 5, ¶11 (herein as Exhibit Six, pp.35), dated June 9, 2000, the People stated that "several photographs were taken of the Pignataro household. They are currently in possession of the West Seneca Police Department.

115. Ironically, the "book" tells a different story. See Exhibit Six, pp.36-37. Armed with this knowledge and that detailed two paragraphs above, I attempted to obtain these materials from the West Seneca Police Department via the Freedom of Information Act (FOIL). My first attempt was on April 5, 2005. See Exhibit Six, pp. 38-40. West Seneca Attorney, William H. Bond, responded on April 19, 2005, (Exhibit Six, p. 41) stating "there are no materials in the possession of the West Seneca Police dealing with surveillance...."

116. Frustrated by Attorney Bond's evasion, I wrote to him on April 23, 2005, (Exhibit Six, p.42) stating:

"Given that the majority of the extensive surveillance was clearly and plainly perceptible, the 'materials dealing with surveillance' must be obtainable.
"I ask that you please inform me regarding from whom I may obtain the requested materials."

117. In response thereto, on April 27, 2005, (Exhibit Six, p. 43) Attorney Bond replied:

"You may wish to check with the District Attorney's office."

118. A third and final FOIL request was made on May 1, 2005, (Exhibit Six, pp. 44-48) wherein it stated:

"As we are both aware that an extensive file from your (West Seneca Police) Department was compiled for the Family Court, the above appears somewhat disingenuous? Further, and as stated in my correspondence of April 23, 2005, (enclosed) given that the majority of the surveillance was clearly and plainly perceptible, the 'materials dealing with surveillance' must be obtainable. "Surveillance about your town, both on foot (i.e. South-Gate Plaza) and by car; in addition to photos taken at the little loop football field behind the West Seneca Senior Citizens Center, are by law discoverable."

119. Town Attorney Bond's persistent evasive, protectionist response(s) is/are included herein as Exhibit Six, p.49.

120. How much clearer can perjury be???

121. ADA Sedita's perjury is -as it was for me then- a moral certainty.

122. The threatening of my wife as a witness and obstruction of justice and perjury, pale in comparison to the acts of conspiracy and solicitation leading to entrapment and ultimately a coerced plea. Severly handicapped by the isolation and restrictive circumstances, your petitioner struggled mightily over these many years, with varying degrees of success, to investigate the following charges/grounds/issues. Eventually, I was able to retain a licensed private investigator, Philip J. Gallagher.

123. Investigator Gallagher has traveled to Buffalo on more than one occasion. As well, he has traveled to Correctional Facil-

ities to garner evidence and statements to prove these allegations. Investigator Gallagher was armed with the following information.

124. While an inmate at the Erie County Holding Center, I was housed on the Echo-NorthEast Gallery. My cell (#75) overlooked Delaware Avenue and the District Attorney's office. I can assure one that, as a physician, the psychological trauma for one of my ilk, being placed in this "Room with a View," draped in orange pajamas, being threatened by rapists and murderers, and being solicited by inmate con-artists on a daily basis is/was more than enough to break any man.

125. Fortuitously, I kept a list of many of the other inmates who were (at that time) either involved in or aware of these incidents. See Exhibit Six, p.51. Petitioner will endeavor to give as much detail as possible herein.

126. Several times per week, I would see from my cell window, District attorneys Sedita and Bridge scamper across Delaware Avenue into the jail. Knowing, at that time, that I was public enemy number one in the D.A.'s office; knowing that Mr. Sedita and Ms. Bridge were the two attorneys assigned to my case; seeing and hearing the vengeance and vitriol with which they had intervened in my Family Court case; I began to notice a strong correlation between the DA's visits to the jail and an attempt at my entrapment. Whereby, whenever these two DAs were in the jail, within 24-48 hours, I was being approached by a new inmate. I was being worked. I was being solicited with a conspiracy to eliminate an informant-witness in my case. Whenever approached, I would wait for an opportunity to speak to the Deputy on duty, in private,

so as not to appear the "snitch." I would explain the situation and ask that either myself or the recruited-inmate-informant be moved to a separate gallery. The Echo-NorthEast Gallery log book, between February, '00 and February, '01 would reflect these incidents. Attempts to obtain copies of this log book via FIOLE requests were unsuccessful. See Exhibit Six, pp. 52-54.

127. Curiously, the offender was always removed, i.e. not myself. I was to learn later that this gallery had the most telling sobriquet. It was known as "the snitch dorm." Inmate Alex Molnar (see Exhibit Six, pp. 57-65) can reaffirm same. Most often, I explained these solicitations to Officer Hartman. Unbeknown to me at that time, Officer Hartman was cognizant of the placement of these recruited informants, as he was working in collusion with his brother, Captain Hartman. This explains the motive of moving the conspiratorial inmates and not myself.

128. Over many months of warding off these conspiratorial solicitations, they became more varied and more aggressive. Inmate Kenny Purdue (Exhibit Six, pp. 66-67) promised that he could have the witness hung in his cell [Note the witness, Paul Nagy, was in the same jail] and that the same may happen to myself if I were not to agree to his conspiracy.

129. Inmate Hector Rivera (AKA Jose Ayala) averred that he was wanted in Boston, MA., for having broken the knee-caps of a snitch. Hereagain, the same would happen to me if I did not conspire to pay/solicit his cousin to 'take-out' this witness, Nagy. Paul Nagy was, by this time, released.

NOTE: The book, "Last Dance, Last Chance" gives the following pseudonyms:

- 1) Paul Nagy = Arnie Letovich
- 2) Kenny Purdue + Mohammed Kwamba
- 3) Hector Rivera (AKA Jose Ayala) = Luis Perez
- 4) Joe Giglia (most probably) = Paulie Cavilini

130. The book only discusses the above four inmates. I know, for certain, that there were many more. Again, see Exhibit Six, p.51. As further substantiation, while an inmate at Five Points Correctional facility, I was reunited with one Wayne A. Bolden. Mr. Bolden reported to me that he was aware of the DAs' and Deputys' schemes to entrap me. He states as much in his sworn statement. See Exhibit Six, p.55. Although Mr. Bolden informs of his high suspicion, he could not state for certain whether the recruited informant, Frank Burns, had worn a wire. Over time, it became clear that the recruitment and placement of informants was a well coordinated scheme, choreographed among the the DAs and the Deputies.

131. Wherefore, after having endured the further psychological trauma of having been set up in the Holding Center's law Library with Informant Burns, I filed an incident report with Deputy Fahey. See Exhibit Six, p.56. Realize that at this point, even the most solid individual would be terrified, confused and disoriented. These incident reports are supposed to be responded to within 24 hours. After three days without a response, I confronted Sgt. Walczak (Note Exhibit Six, p.56, spelled Waliczek) of my own volition. I presented him with my (pink) copy of the report as given in Exhibit Six, p.56. Sgt. Walczak stated that he would speak to Captain Hartman and get back to me. I never heard from Sgt. Walczak again.

132. One mechanism which I have become aware of, whereby informants are recruited, involves Deputy Carabello making the proposal/pitch to an inmate during the one-on-one strip search, following the inmate's visit. ECHC (Erie County Holding Center) inmates Koerner, Holley and Lanroach (see Exhibit Six, p.51) reported the same approach. Unbelievably, after my post-entrapment plea, Deputy Carabello attempted the same recruitment scheme with myself. Deputy Carabello proposed that he could assure me a lighter sentence if I was willing to be recruited to gather information from inmate Lanroach, regarding how he (Lanroach) was able to get drugs into the facility.

133. Further proof of Deputy Carabello's schemes came to light when Investigator Gallagher spoke with inmate Kenny Perdue. See Investigator Gallagher's work product/report prepared on my behalf, Exhibit Six, pp. 66-67. Therein Mr. Perdue confirms not only Deputy Carabello's recruitment, but also, the wearing of a wire. Same only heightens one's suspicion(s) of informant Burns -and others- as having worn a wire. Interestingly, all of these informants had active cases and counsel. Mr. Perdue confirmed that his counsel was never informed nor consulted. Interestingly, none of this is mentioned in the 'book'????

134. Several months on, Investigator Gallagher was able to confirm all of the above in a formal statement given and signed by Mr. Kenny Perdue. See Exhibit Six, pp. 84-88.

135. The fact that informant Perdue has admitted to having been recruited to wear a wire, the fact that informant Burns is, in all

probability, likely to have worn a wire, the fact that others were/are solicited into such conspiratorial acts, the fact that Deputy Carabello had the audacity to solicit me, as well; all of this is utterly ire inspiring. Nevertheless, the most ire inspiring conspiracy was to follow.

136. For the sake of fairness and completeness, after many months and dozens of failed attempts, I, ultimately, weakened and succumbed to a single entrapment conspiracy. I am not proud of this. Psychologically crippled over many months of threats and solicitations, inmate Hector Rivera got to me. He reported that his cousin was driving to New York City to make a cocaine buy. This cousin had turned around at Hector's request to help in the conspiracy to eliminate Mr. Nagy. As noted above, inmate Rivera, AKA Jose Ayala, (book alias Perez) threatened that if I backed down after having his cousin turn back from his trip, it would be my knees that would be broken. See pages 284-286 of the book, herein as Exhibit Six, pp. 78-80. Contrary to the version given in said book, Hector Rivera (Perez) placed the phone call -NOT MYSELF! Having phoned his cousin, Mr. Rivera threatened me into taking the phone. It should be an easy endeavor to obtain this taped phone conversation. Therein, one notes that A) not only did I not initiate the call/incident, but, B) my extremely scared and reluctant voice would be heard as it trembled through a brief 20 second conversation. Overtaken by fear, I then dropped the phone. Hector picked up the phone. He then can be heard to say "esta nervioso." In English, "he's nervous." Terrified would have been more accurate. Mr. Rivera then attempted

to entice me back onto the phone without success. This is a far cry from the tale told in that 'book.'

137. Mr. Rivera/Ayala/Perez was, at the time, represented by attorney Thomas Eoannou on his open/pending case, Attorney Eoannou was unaware that his client was recruited into this choreographed conspiracy to solicit me into their entrapment scheme.

138. Additional evidence of the recruitment process was garnered when your deponent was reunited with inmate Wendel Goden. Inmate Goden was present on the Echo-NorthEast gallery at the time. Deputy Gonzalez tipped us off to the fact that Inmate Rivera had been planted on the gallery to "entrap me." See Exhibit Six, p.81. Unfortunately, this exhibit/document is unsigned and undated, Same was a draft that Mr. Goden decided to "think about." Mr. Goden, subsequently, decided that he did not want to sign the draft after having spoken to some of his Hispanic friends. Mr. Goden explained that he did not wish to incur the potential wrath of the deputies at the ECHC should he ever be reincarcerated there.

139. On February 23, 2005, Investigator Gallagher was able to track Inmate Goden to the Gowanda Correctional Facility. See Exhibit Six, pp. 82-83. Inv. Gallagher had intended to speak with Mr. Goden to confirm these facts. However, Inv. Gallagher now reports that Mr. Goden has been released to parole and that he (Mr. Gallagher) has been unable to locate Mr. Goden.

140. Obviously, one would have had to have been extremely intimidated and threatened to have succumbed to Mr. Rivera's solicitation after having been tipped off by Deputy Gonzalez. Deputy Gonzalez further stated that he would not risk his job nor his pension if

I spoke of this to anyone. Circumstances notwithstanding, the book tells of my having conspired to solicit a 'hit-man' on three different occasions. Why then had no one ever inquired as to why I was never indicted for any of these crimes???

141. As of March 15, 2006, another Investigator, Ralph Bellucco, has been retained to try to locate and depose Mr. Goden, in order to have him affirm the facts in Exhibit Six, p.81. To date, Mr. Bellucco had been unable to locate Mr. Goden. His investigation continues. See Exhibit Six, pp. 89-99.

142. Clearly, over the past six years, one would not invest in multiple investigators if he were not confident of the facts beyond a moral certainty. Most fortuitous is the fact that the longer one remains incarcerated, the more inmates one encounters as they are re-located throughout the Department of Corrections. Verification of the statements in Mr. Goden's unsigned statement arrived in December 2006. Mr. Wilfredo Morales was present on the Echo-NorthEast gallery at the time , as well. He was able to confirm the facts as given above in his sworn affidavit . See Exhibit Six, p. 99(i).

143. Your petitioner wishes to note for the record that inmate Russell Borman (Exhibit Six, p.51) was in the cell next to my own, on the Echo-NorthEast gallery. Mr. Borman reported that the Holding Center Deputies searched my cell while I was out to the frequent proceedings in Family and Criminal Court(s). Other than food and candy, the only thing(s) these deputies were searching through

(as confirmed by Mr. Borman) was my legal papers and correspondence with my attorney.

144. Physical assault is visible and quantifiable. The mental and psychological assault at the hands of the omnipresent government and under such circumstances, though invisible and hard to quantify, is/was far more crippling.

145. Wherefore, all of the above, in totality detail the clear and plain violation of multiple Penal Laws, including Obstruction of Justice, Obstructing Governmental administration, Conspiracy to commit crime(s), Solicitation to commit crime(s), as well as, enterprise corruption, inasmuch as, these recruitment schemes constitute an ongoing enterprise.

146. Attorney Kartagener was undeniable aware of all of the above issues regarding the recruitment of informants into the carefully choreographed solicitation(s) and conspiracy(s). All of this was presented to Mr. Kartagener in our phone conversations, at our meetings in March and September of 2002 and in my many mailings to him. Some of these mailings are exhibited herein as Exhibit Six, pp. 100-117. See highlights therein. Attorney Kartagener's failure to investigate and follow-up on these grounds further magnifies his negligence.

147. A recruited informant becomes the embodiment of Law Enforcement.

"It has been established that once an attorney enters the proceeding (People v. Hobson, 39 N.Y.2d 479, 384 N.Y.S.2d 419, 348 N.E.2d 894), a defendant in custody may not be questioned by police concerning matters on which he is represented or concerning the subject matter of the proceeding. The rule was subsequently

expanded to to preclude custodial questioning concerning crimes unrelated to those on which the defendant is represented (People v. Rogers, 48 N.Y.2d 167, 422 N.Y.S.2d 18, 397 N.E.2d 709, supra; see also, People v. Smith, 54 N.Y.2d 954, 445 N.Y.S.2d 145, 429 N.E.2d 823; People v. Bartolomeo, 53 N.Y.2d 225, 440 N.Y.S.2d 894, 423 N.E.2d 371; People v. Kazmarick, 52 N.Y.2d 322, 438 N.Y.S.2d 247, 420 N.E.2d 45), and further expanded to preclude non-custodial questioning about the very same matters on which the defendant is represented (People v. Skinner, 52 N.Y.2d 24, 436 N.Y.S.2d 207, 417 N.E.2d 501; see also People v. Knapp, 57 N.Y.2d 161, 455 N.Y.S.2d 539, 441 N.E.2d 1057, 1982; People v. Sanders, 56 N.Y.2d 51, 451 N.Y.S.2d 30, 436 N.E.2d 480)." People v. Hauswirth, 89 A.D.2d 455 N.Y.S.2d 442 at 443 (4th Dept. 1982).

The United States Constitution's Sixth Amendment precludes

"communication between the suspect and one acting as an agent of the police:"

"One who is represented by counsel can only waive his right to counsel in the presence of counsel (People v. Hobson, 39 N.Y.2d 479, 483, 384 N.Y.S.2d 419, 348 N.E.2d 894). Absent such a waiver, the police may not question a defendant (People v. Arthur, 22 N.Y.2d 325, 292 N.Y.S.2d 663, 239 N.E.2d 537). Once the right to counsel has attached, the prosecutor and the police 'have an affirmative obligation not to act in a manner that circumvents and thereby dilutes the protection' it affords (Main v. Moulton, ___ U.S. ___, 106 S.Ct. 477, 479, 88 L.Ed.2d 481). That obligation pertains whether applied to direct communication between the suspect and the police, or to **COMMUNICATION BETWEEN THE SUSPECT AND ONE ACTING AS AN AGENT OF THE POLICE** (see Missiah v. United States, 377 U.S. 201, 84 S.Ct. 1199, 12 L.Ed.2d 246; People v. Cardona, 41 N.Y.2d 333, 392 N.Y.S.2d 606, 360 N.E.2d 1306)." People v. Grainger, 114 A.D.2d 285, 498 N.Y.S.2d 940 at 943 (4th Dept. 1986).

Also:

"It cannot be said in such circumstances that the prosecutor and police complied with their affirmative obligation not to circumvent and dilute defendant's Sixth Amendment protection. It is equally obvious that defendant's admissions were not spontaneously volunteered. They were induced, provoked and encouraged by one acting as an agent of the State. Evidence procured in that manner should have been suppressed. Grainger, supra at 944.

148. How much more similar can the Grainger case be to the instant case???

149. As noted above, 'Hector Rivera (as agent) placed the phone call -NOT MYSELF!'

150. As noted above, 'Mr. Rivera (as agent) subsequently threatened me into taking the phone.'

151. The United States Supreme Court has consistently held as follows:

"We hold that the petitioner was denied the basic protections of that guarantee when there was used against him at his trial evidence of his own incriminating words, which federal agents had deliberately elicited from him after he had been indicted and in the absence of his counsel. It is true that in the Spano case the defendant was interrogated in a police station, while here the damaging testimony was elicited from the defendant without his knowledge while he was free on bail. But, as Judge Hayes pointed out in his dissent in the Court of Appeals, 'if such a rule is to have any efficacy it must apply to indirect and surreptitious interrogations as well as those conducted in the jail-house. In this case, Massiah was more seriously imposed upon * * * because he did not even know that he was under interrogation by a government agent.' 307 F.2d 72-73." Massiah v. United States, 377 U.S. 205, 84 S.Ct. 1199 at 1203 (1964).

152. Noteworthy here is the fact(s) that in defendant Massiah's case; A) The defendant was out on bail, B) The defendant was not in "A Room with a View.," C) The defendant, Messiah, showed no prior reluctance, D) Messiah did not endure intense, persistent, psychologically taxing attempts at such choreographed entrapment solicitations.

153. The United States Supreme Court recognizes the severe, acute, psychological breakdown that a defendant endures by such "inducements" of informants:

"As a ground for imposing the prophylactic requirement in Miranda v. Arizona, 384 U.S. 436, 467, 86 S.Ct. 1602, 1624, 16 L.Ed2d 694 (1966), this Court noted the powerful psychological inducement to reach for aid when a person is in confinement...While the concern in Miranda was limited to custodial police interrogation, the mere fact of custody imposes pressures on the accused; confinement may bring into play subtle influences that will make him particularly susceptible to ploys of undercover Government agents. The Court of Appeals determined that on this record the incriminating conversations between Henry and Nichols were facilitated by Nichols' conduct and apparent status as a person sharing a common plight.

.....
"Under the strictures of the Court's holding on the exclusion of evidence, we conclude that the Court of Appeal did not err in holding that Henry's statements to Nichols should not have been admitted at trial. By intentionally creating a situation likely to induce Henry to make incriminating statements without the assistance of counsel, the Government violated Henry's Sixth Amendment right to counsel. This is not a case where, in Justice Cardozo's words, 'the constable... blundered,' People v. DeFore, 242 N.Y. 31, 21, 150 N.E. 585, 587 (1926); rather, it is one where the 'constable' planned an impermissible interference with the right to the assistance of counsel." United States v. Henry, 447 U.S. 276, 100 S.Ct. 2183, at 2188-2189 (1980).

154. A defendant should never have to endure the severe, repeated, psychological assault of such inducement(s) at the hands of recruited agents!

155. As originally founded in Miranda v. Arizona, 384 U.S. 455, 86 S.Ct. 1602 (1966):

"It is not admissible to do a great right by doing a little wrong." Miranda (supra) at 1614.

"If you use your fists, you are not so likely to use your wits." Miranda (supra) at 1614.

"Coercion can be mental as well as physical, the blood of the accused is not the only hallmark of an unconstitutional inquisition." Miranda, (supra) at 1614.

"Privacy results in secrecy and this in turn results in a gap in our knowledge as to what infact goes on in the interrogation rooms." Miranda, (supra) at 1614.

156. The Honorable Chief Justice Earl Warren noted that prosecutors, investigators, Police, etc., etc., are taught:

"By manuals and observed in practice,... (that) to be alone with the subject is essential to prevent distraction and to deprive him of outside support."...

...
"It is important to keep the subject off balance, for example, by trading on his insecurity about himself and his surroundings. The Police then persuade, trick, or cajole him out of exercising his constitutional rights." Miranda, (supra) at 1617.

157. Regarding all of the above, as it pertains to grounds three and four, these matters are outside the record. Once Mr. Kartagener failed to follow-up and present these grounds on the initial CPL 440.10 motion, Petitioner was precluded from presenting them on a subsequent 440.10 motion, pursuant to the mandates of NYS CPL §440.10(3)(c). Addiitonally, one can easily see the "existence of circumstances such as futility, rendering such process ineffective." Practicality and necessity mandate that Petitioner has exhausted his State remedies. The procedural maze which Petitioner has been made to run through, all these many years, on the State level, all due to Mr. Kartagener's malfeasance, has been far too time consuming, not to mention, far too labyrinthine.

158. Furthermore, it is plain that exhaustion is indicated pursuant to 22 USC §2254(b)(1)(B)(ii): "circumstances exist that render such process ineffective to protect the rights of the appellant."

159. Plainly, Petitioner was coerced into a plea of guilty which

was unlawfully induced and involuntary. Plainly, Petitioner's conviction was in violation of the privilege against self-incrimination, was well as, the denial of the assistance of counsel. Trial counsel had already been retained when Petitioner was confronted with the multiple recruited agents of the State.

160. Circumstance notwithstanding, in light of the New York Times best selling novel written about this case, in light of a speculative Court TV documentary running repeatedly on cable TV, in light of the clear frustration and futility that this Petitioner has experienced in the State courts -for greater than 7 years now, inlight of Petitioner's notoriety, it is incontrovertible that pursuant to Title 28 U.S.C. §2254(b)(1)(B)(ii), "circumstance exist that render such process ineffective to protect the rights of the applicant."

Federal case law supports this statute:

"A petitioner alleging ineffective assistance of appellate counsel must prove both that appellate counsel was objectively unreasonable in failing to raise a particular issue on appeal, and that absent counsel's deficient performance, there was a reasonable probability that defendant's appeal would have been successful." Smith v. Goord, 412 F.Supp.2d 248 @ 255, (W.D.N.Y. 2006).

Inasmuch as these grounds supplement Mr. Kartagener's ineffective-ness with regard to the Post-release Suprevison ground(s);

"A claim need not be dismissed for failure to exhaust where the additional ground for an ineffective assistance claim might be seen as merely supplementing the claim already exhausted." Graham v. Portuondo, 2003 WL23185715 at 17, (E.D.N.Y. 2003).

161. Furthermore:

"If the Petitioner cannot show cause and prejudice, the failure to raise the claim in an earlier petition may nonetheless be excused if he or she can show that a fundamental miscarriage of justice would result from a failure to entertain the claim. A fundamental miscarriage of justice requires a showing of 'clear and convincing evidence that, but for a constitutional error, no reasonable juror would have found the petitioner [guilty].' *Sawyer v. Whitley*, 505 U.S. 333, 335, 120 L.Ed.2d 269, 112 S.Ct. 2514 (1992)." *Marino v. Miller*, 2002 WL 2003211 (E.D.N.Y. 2003).

and

"For exhaustion purposes, 'a federal habeas court need not require that a federal claim be presented to a state court if it is clear that the state court would hold the claim procedurally barred. *Harris v. Reed*, 489 U.S. 255, 263 n.9, 209 S.Ct. 1038, 1043, n.9, 103 L.Ed.2d 308 (1989)." *Grey v. Hoke*, 933 F.2d 117, 120, (1991).

162. See also, *Deitz v. Money*, 391 F.3d 804 (6th Cir. 2004), where, at HN.15, "Habeas court was entitled to reach ineffective assistance of counsel claim on merits, notwithstanding that it had not been exhausted in state courts, where state remedies were..... such that attempt to exhaust would have been futile, and case was not barred by procedural default." The issues are very similar in that, there, as in the instant case, the appellate attorney failed to perfect the appeal despite being instructed to do so.

163. In another very similar case where a petitioner was hopelessly stuck in the procedural maze of State level post-conviction carrousel, the Third Circuit Court of Appeals found, *in Lee v. Stickman*, 357 F.3d 338 (2004) at HN.3, "Exhaustion of available state court remedies requirement was excused, and

thus petitioner's federal habeas corpus petition would be entertained, where petitioner....had been before the Pennsylvania state courts for almost 8 years with no resolution." In requiring that the district court entertain the petition on remand, this Federal Appeals Court also stated:

"In the event that the district court is inclined to dismiss any of Lee's claims on procedural grounds, we strongly urge that, if possible, it also analyze and rule on the merits of those claims so that Lee's unfortunate experience in state court is not repeated here." Lee, supra at fn.6, p.344.

163. Lastly;

"However, inexcusable or **INORDINATE** delay by the state in processing claims for relief may render the state remedy effectively unavailable. Wojtczak v. Fulcomer, 800 F.2d 353, 354 (3d Cir. 1986). When inexcusable or **INORDINATE** delay renders the state remedy ineffective, exhaustion may be excused." Wallace v. Dragovich, 143 Fed. Appx 413, 416, 2005 U.S. App. LEXIS 15086, 8, (2005).

164. An interest of Justice doctrine should apply, inasmuch as, every petitioner has a right to the prompt disposition of his/her claim(s). Otherwise, to require further state review would result in a fundamental miscarriage of justice which no civilized society should tolerate. For, it is clear that the County and State will not rule for a defendant when to do so would thereby incriminate their own. There could be no clearer example of an exercise in futility.

*** BACKGROUND AND ARGUMENT: COUNT FIVE ***

165. As stated on page 8(i) of the petition itself, the conviction was obtained by plea of guilty which was unlawfully induced, unintelligent, unknowing and involuntary. This is so because the Petitioner was being medicated with a psychotropic drug, namely, Elavil (Amitriptyline). Proof of same is given in Exhibit Seven.

166. Prior retained appellate counsel, Steven R. Kartagener, was informed of this medication many times both verbally (at meetings and by phone) and in writing. See Exhibit Six, pp. 100-118. See specifically pp. 101 & 103.

167. Exhibit Seven, pp. 1-2, shows the first page of the Pre-sentence investigation followed by page 19 thereof. Therein, page 19 (Exhibit Seven, p.2) of the report confirms that Petitioner was infact medicated with said psychotropic drug.

168. Exhibit Seven, pp. 3-5, further confirms that Petitioner was being medicated with this drug. Therein, the County System had already alerted the State Department of Correctional Services that Petitioner was on this drug while in the County jail.

169. This drug's manufacturer, Astrazeneca, provides the official product information, as required by the FDA for all drugs. The Physician's Desk Reference (PDR) gives this informaiton and is provided herein as Exhibit Seven, pp.6-8. Therein, one notes that this is a psychotropic medication with well documented "sedative effects" whose "mechanism of action in man is unknown." Additional effects of this drug are given therein as "hallucination, delusion, CONFUSIONAL STATES, DISORIENTATION, DISTURBED CONCENTRATION, anxiety,

restlessness, nightmares and headaches, among others.

170. Evidence of this Petitioner's "confusional state, disorientation and disturbed concentration" is found in the last paragraph of page 19 of the presentence report (Exhibit Seven, p.2). The Petitioner had titled the envelope of a card to his mother. The Town, State and zip code were correct (the same as my wife's). In the mental fog and confusion, Petitioner mistakenly wrote the number and street address of his wife, rather than his mother as titled. Although not titled to my wife, she opened the envelope and turned it over to the prosecution, who turned it over to the presentence reporter. Although parsed to manipulate and promote the agenda of the presentence investigation report, this is niether here nor there. The point is that same is purely illustrative of the sort of mental confusion, disorientation and clearly disturbed concentration effected upon the Petitioner by this drug.

171. As seen above, Petitioner was being psychologically tortured and traumatized by multiple recruited informants. How much clearer can confusion and disorientation be than that illustrated here and occasioned [and likely intensified by] this psychotropic drug?

172. In Carrisquillo v. Lafavre, 504 F.Supp. 129, (SDNY 1980), Carrisquillo was on Elavil at the time of his plea, rendering same involuntary and unknowing. The District Court Stated:

"The motion to withdraw the guilty plea...should have beed granted; (that) at the time of his guilty plea to the Court petitioner was under the influence of prescribed drugs (ELAVIL) making his plea involuntary; and that petitioner's court appointed attorney deprived him of his constitutional right to effective assistance of counsel." Carrisquillo, (supra) at 131.

Also, from this same case:

"Coercion which produces involuntary plea may result from a 'drug-induced' situation, just as it can result from physical or mental intimidation." Carrisquillo, (supra) at 131.

173. In Manis v. Wyrick, 580 F.Supp. 1350 (1984), therein citing Carrisquillo (supra) at 1363, when explaining the reasoning of a defendant's potential influence by an intoxicant, the District Court made the following analogy:

"Convincing evidence of the fact that one who spent the entire afternoon in a bar drinking whiskey may have known that he was supposed to go home at 6 o'clock for a dinner party and that he talked to his family when he got home at 6:15p.m. simply would not support a reliable finding that such a person was not driving under the influence on his way from the bar to his home." Wyrick, (supra) at 1361.

174. The trial Court reviewed this pre-sentence investigation report. This ground, as it pertains to the psychotropic drug -Elavil, is on the record, inasmuch as, it was reported to the trial court in said presentence investigation report at page 19 (Exhibit Seven, p.2 herein).

175. Therefore, A) due to the ineffecitve assistance of appellate Counsel -Mr. Kartagener- this petitioner is procedurally barred from further State level appeal, direct or otherwise, and
B) Petitioner is procedurally barred from collateral review via CPL 440 because the matter (Elavil) is "on the record."

176. Therefore, any further State proceedings are exhausted and/or "futile". Therefore, Habeas Corpus relief is available pursuant to 28 USC §2254(b) (1) (i).

177. As the Federal District Court for the Eastern District of New York stated:

When a petitioner has not properly presented his claim to a state for consideration on the merits, but, 'it is clear that the state court would hold the claim procedurally barred,' a federal habeas court need not require that the claim be presented to a state court. *Harris v. Reed*, 489 U.S. 255, 263 n.9, 109 S.Ct. 1038, 1043 n.9, 103 L.Ed.2d 308 (1989). Under such circumstances, notwithstanding the failure to present the claim to a state court, the exhaustion requirement is satisfied. (citations omitted)." *Lloyd v. Walker*, 771 F.Supp. 570, 574 (E.D.N.Y. 1991).

178. It has also been held that:

"A petition containing unexhausted but procedurally barred claims in addition to exhausted claims, is not a mixed petition requiring dismissal under *Rose*. Although the unexhausted claims may not have been presented to the highest state court, exhaustion is not possible because the state court would find the claims procedurally defaulted. See *Coleman v. Thompson* ___ U.S. ___, ___ &n.1, 111 S.Ct. 2546, 2555, 2557 & n.1, 115 L.Ed.2d 640 (1991); *Castille v. Peoples*, 489 U.S. 346, 351, 109 S.Ct. 1056, 1060, 103 L.Ed.2d 380 (1989) ('requisite exhaustion may nonetheless exist...if it is clear that [petitioner's] claims are now procedurally barred under [state] law'); *People v. Fulcomer*, 882 F.2d 828, 830 (3rd Cir. 1989). The district court may not go to the merits of the barred claims, but must decide the merits of the claims that are exhausted and not barred. See e.g. *Teague v. Lane*, 489 U.S. 288, 109 S.Ct. 1060, 103 L.Ed.2d 334 (1989)." *Toulson v. Beyer*, 987 F.2d 984, 987 (3rd Cir. 1993).

179. Regarding the Elavil (Amitriptyline) issue as well as the issues regarding the District Attorney's recruitment of informants, and Attorney Kartagener's knowledge of all of these grounds, the long held mandate of the United States Supreme Court enunciated in *Townsend v. Sain*, 372 U.S. 293, 83 S.Ct 745, 9 L.Ed.2d 770 (1963),

requires that barring reversal, an evidentiary hearing be held not only to resolve any disputed facts, but, to provide the prior privately retained appellate attorney the opportunity to be heard in explanation.

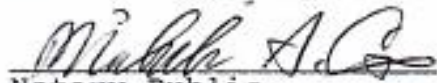
WHEREFORE, petitioner respectfully prays that for all the foregoing reasons his conviction be reversed and vacated, or, in the alternative, an evidentiary hearing be held; and for such further and different relief as this Honorable Court deems just and proper.

Dated: June 21, 2007
Romulus, New York

Respectfully submitted,


Anthony S. Pignataro

Duly sworn to before me
this 21st day of June, 2007


Notary Public

Notary Public
New York State Seneca County
Registration No. 01CO6155605
Michele S. Cox
My appointment expires Nov 13, 2010